

Court No. - 39

Case :- WRIT - C No. - 27789 of 2022

Petitioner :- Vijai Pal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Achyutanand Pandey

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

For the grievances raised by the petitioner herein, the remedy before him is to approach the Executive Engineer concerned by invoking provisions of Clause 6.5 of the Electricity Code, 2005.

Be that as it may, without entering into the merits of the claim of the petitioner the writ petition is **disposed of** with the observation that the petitioner shall file his representation before the respondent no.2 i.e. Executive Engineer, Vidyut Vitran Ltd. Karhal Road, Mainpuri by invoking provisions of Clause 6.5 of the Electricity Supply Code, 2005 within a period of two weeks from today along with the copy of this order.

In case, such a representation is filed, the competent authority shall be under obligation to take an expeditious decision in accordance with law, preferably, within a period of two months, thereafter.

For a period of two months or till a decision is taken by the Executive Engineer, pursuant to the above direction, no coercive measure shall be taken against the petitioner.

In case of any default on the part of the petitioner in filing objection within the time given above, it would be open for the respondent to proceed in accordance with law.

Order Date :- 20.9.2022

Himanshu